THE LEGAL ANGLE

WILL THE VERDICT STAND?

Rahul Gandhi's dismissal of the UPA ordinance protecting lawmakers from disqualification and failed petition to decriminalise defamation have returned to haunt him, but the law may offer some hope yet

On March 23, the Surat district court found Congress leader Rahul Gandhi guilty in a 2019 criminal defamation case under Sections 499 (defamation) and 500 (punishment for defamation) of the IPC and sentenced him to two years in jail, the highest penalty for a conviction under these charges. He was granted bail and the sentence suspended for 30 days to allow an appeal. The case followed a plaint by BJP MLA Purnesh Modi, who said Rahul's remarks defamed the "Modi community" as a whole.

Defamation is the act of injuring another person's character, reputation or fame by publishing false or malicious statements. In India, defamation can be both a civil as well as a criminal offence. In civil defamation, the defamed can move court seeking damages in the form of monetary compensation. There is no jail sentence involved. In criminal defamation, governed by the IPC, the accused can face up to two years' imprisonment or a fine or both. IPC Sec. 499 lays down the definition of defamation and Sec. 500 lays down the punishment for criminal defamation.

In the case against Rahul, the complaint was based on the second explanation to Sec. 499, which reads: "It may amount to defamation to make an imputation concerning a company or an association or collection of persons as such." Legal experts are now raising the question—can all people with the Modi surname qualify to be counted as a "collection of persons"? In India, the Modi surname is used across religions (Hindu and Parsi), communities (upper caste and OBCs) and geography. Supreme Court lawyer Santosh Hegde says people with a common surname do not form a "collection of persons" as they are not a homogeneous company or association of the type required under Explanation 2 of Section 499.

In May 2016, the apex court had upheld the constitutional validity of the penal laws on defamation, saying "reputation of one cannot be allowed to be crucified at the altar of the other's right of free speech". One of the petitioners against the law was Rahul himself.

Following his conviction, Rahul has been disqualified as a member of Parliament. Clause (3) of Section 8 of the Representation of the People Act (RPA), 1951, says if a member of a legislature is convicted of a criminal offence and sentenced to at least two years in jail, he or she will be disqualified from the date of conviction and continue to be so for six years from the release date.

However, Section 8(4) of the RPA says that disqualification takes effect only "after three months have elapsed" from the date of conviction and if the MP or MLA has appealed against it in a higher court during that interregnum. However, in *Lily Thomas vs Union of India* in 2013, the SC declared Section 8 (4) of the RPA unconstitutional on the ground that Parliament had no power to enact such an exemption for sitting members. The judgment, in effect, made instant disqualification of a legislator possible as soon as he or she is convicted.

In 2018, the SC held that once a conviction has been stayed during the pendency of an appeal, the disqualification is no longer valid

In 2013, the United Progressive Alliance government had tried to circumvent the Lily Thomas ruling by enacting an ordinance nullifying immediate disqualification on conviction. Ironically, Rahul tore up a copy of the ordinance at a press conference to express his displeasure with it. The government later withdrew the ordinance. Following Rahul's disqualification, a Kerala-based social activist has filed a petition in the SC challenging the constitutional validity of Section 8(3) of the RPA that provides for automatic disqualification. "If a person is acquitted after the appeal, what happens to the lost period? If disqualification happens immediately, what is the point of the appeal? The first verdict becomes the final verdict. That is the crux of our appeal," says lawyer Deepak Prakash, who is representing petitioner Aabha Muralidharan.

In 2018, the Supreme Court held that once a conviction has been stayed during the pendency of an appeal, the disqualification ceases to be in effect. Satya Narayan Sahu, former joint secretary of Rajya Sabha, says that anomalies in the RPA and Supreme Court rulings have left serious loopholes. In January this year, the Lok Sabha MP from Lakshadweep, Mohammad Faizal, was disqualified after being sentenced to 10 years' imprisonment by a district court in an attempt-to-murder case. The Lok Sabha Ethics Committee stripped Faizal of his membership from the date of his conviction, January 11. On January 18, the Election Commission also announced byelections to the vacant Lakshadweep Lok Sabha seat. However, on January 25, the Kerala High Court suspended Faizal's conviction, following which the EC cancelled the bypoll. When Faizal was not automatically reinstated as an MP, following suspension of his conviction, he moved the Supreme Court. On March 29, shortly before the top court was set to hear his petition, his Lok Sabha membership was reinstated.

In Rahul's case, if he gets a stay after six months and by then a new member is elected from his constituency Wayanad, what will happen to the newly elected MP from Wayanad? Will Rahul again become MP from Wayanad? "Nobody has answers to these questions," says Sahu, a view seconded by constitutional expert Subhash Kashyap. ■